Freight Liability

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Introduction

Your insurance Policy is evidence of the contract You have made with Us. We insure You during the Period of Insurance in the terms set out under each section of this Policy in return for payment of the premium. Only those sections or sub-sections stated in the Schedule as "Insured" are operative.

Our acceptance of this risk is based upon the information You have presented to Us being a fair presentation of Your Business. You have advised Us of any unusual or special features of Your Business that might cause You any particular concerns.

You must tell Us as soon as possible of any change to the information given on Your Proposal or shown on the Statement of Fact as failure to notify us of changes to Your Business, which means that the information You originally provided no longer represents a fair presentation of the risk, may invalidate the cover. You should not wait until the next renewal date.

Please read this Policy wording and the Schedule carefully. Make sure that they meet Your needs. If You have any queries or any information in the Schedule is incorrect, please contact Your broker.

We will provide the insurance described in this Policy (subject to the terms set out herein) for the Period of Insurance shown in the Schedule and any subsequent period for which You shall pay and We accept the premium.

Rights to Cancel

You have the right to cancel this Policy without penalty at any time prior to commencement of cover.

Once cover has commenced You may cancel by giving Us 30 days of notice in writing to Your broker. You will be entitled to a return premium based upon our short-period cancellation rates shown below. You will not be entitled to any return of premium if a claim has been made in the current Period of Insurance

Short-Period Cancellation Rates:

Period of cover	Cancellation rebate as a percentage of annual premium
Up to 14 days	80%
Up to 1 month	75%
Up to 2 months	70%
Up to 3 months	60%
Up to 4 months	50%
Up to 5 months	40%
Up to 6 months	30%
Up to 7 months	20%
Up to 8 months	15%
Up to 9 months	10%
Over 9 months	0%

We may cancel:

1. By giving not less than 15 days of notice in writing if any premium due under this Policy has not been paid to Us. If the premium due is paid in full to Us before the notice period expires, the notice of cancellation shall automatically be revoked. If not, this Policy shall automatically terminate at the end of the notice period.

   If We cancel, the premium due to Us remains payable for the period that We were on risk. In the event of the occurrence of a loss which gives rise to a claim prior to the date of termination the full premium shall be payable to Us.

2. By giving 30 days of notice in writing to You at Your last known address. If we cancel You will be entitled to a proportionate return of premium.

If We cancel under General Condition – Economic, Financial or Trade Sanctions no refund of premium will be due to you for the unexpired Period of Insurance

Consequences of Non-Disclosure or Misrepresentation

When agreeing to provide this insurance, We have relied on the accuracy of the information and statements which You have provided to Us.

If You fail to disclose information relevant to Your Policy or You make an incorrect statement to Us and We establish that this is either a deliberate or reckless breach of law, We may terminate the Policy and refuse to pay all claims and need not return any of the premiums paid.

If You fail to disclose information relevant to Your Policy or You make an incorrect statement to Us that is not a deliberate or reckless breach of law:

a. If We would not have entered into the policy at all, We may terminate the Policy and refuse all claims, but must return the premiums paid;
b. If We would have entered into the policy, but on different terms (other than terms relating to the premium), the policy is to be treated as if it had been entered into on those different terms from the outset, if we so require;
c. If We would have entered into the policy, but would have charged a higher premium, We may reduce proportionately the amount to be paid on a claim.

If You are in doubt as to whether any information is relevant to our assessment of Your risk, You should disclose this information to Us.

Applicable Law & Jurisdiction

The parties to this contract are free to choose the court jurisdiction applicable to this contract of insurance. Unless specifically agreed to the contrary this contract of insurance will be governed by the laws of the United Kingdom, the Isle of Man or the Channel Islands depending upon Your address show in shown in the Schedule and to the jurisdiction of the courts of England.

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Making a Complaint

If Your complaint relates to Our service or Your Policy, please contact the Managing Director by writing to Provego Ltd, Lasyard House, Underhill Street, Bridgnorth, WV16 4BB, emailing info@provego.co.uk or calling 01746 250027.

If Your complaint relates to a claim, You should complain to provegoclaims@uk.sedgwick.com or by telephone at 0345 605 0871.

What will happen if You complain:

a) Provego or Sedgwick will acknowledge Your complaint promptly and try to resolve it within five working days.
b) For cases that may take a little longer to investigate, we will write to You with a final response within eight weeks of the date Your complaint is received.

If You remain dissatisfied, You have six months from the date of the final response to refer Your complaint to the Financial Ombudsman Service (FOS). The FOS is an independent body that arbitrates on complaints.

Post: Financial Ombudsman Service, Exchange Tower, London, E14 9SR
Telephone: 0800 0234567 or 0300 1239123
Email: complaint.info@financial-ombudsman.org.uk
Website: www.financial-ombudsman.org.uk

This does not affect Your right to take legal action; however, the FOS will not adjudicate on any case where litigation has commenced.

The Financial Services Compensation Scheme

We are a member of the Financial Services Compensation Scheme (FSCS). This provides compensation in case any member goes out of business or into liquidation and is unable to meet any valid claims against its policies.

You may be entitled to compensation if We cannot meet Our obligations, depending on the circumstances of the claim. Further information about the compensation scheme can be obtained from the FSCS.

Post: Financial Services Compensation Scheme, PO Box 300, Mitcheldean, GL17 1DY
Telephone: 0800 678 1100 or 020 7741 4100
Website: www.fscs.org.uk

Your Insurer

Cover under this Policy may be provided by a selection of insurance companies, each of whom are detailed below:

Your Policy is underwritten by Accelerant Insurance Europe SA, Bastion Tower, Level 20, Place du Champ de Mars 5, 1050 Brussels.

Accelerant Insurance Europe SA/NV UK Branch which is the UK establishment of Accelerant Insurance Europe SA/NV, an insurance company authorised under code 3193 and regulated by the National Bank of Belgium and the Financial Services and Markets Authority in Belgium. Authorised by the Prudential Regulation Authority. Subject to regulation by the Financial Conduct Authority and limited regulation by the Prudential Regulation Authority. The Firm Reference Number of Accelerant Insurance Europe SA/NV UK Branch is 940712. Its UK Establishment Number is BR025748.

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General Policy Claims Conditions

1. Making a Claim

In the event of any occurrence likely to give rise to a claim, or a claim made against You, or receipt of notice of any circumstance which might give rise to a claim under this Policy You shall:

a) notify Us within 14 days of becoming aware of such occurrence or claim by using the ***claims helpline*** *on* ***0345 605 0871*** *or our* ***claims email provegoclaims@uk.sedgwick.com*** *(*You will also find claims reporting information at https://bspokegroup.co.uk/brands/provego-underwriting/).

In the case of theft, malicious damage or criminal act, You will immediately notify the police and You shall take all reasonable steps to discover the identity of the guilty person and to trace and recover the property lost.

Within 30 days of destruction or damage to property insured, or such further time as We may allow, You will provide Us at Your own expense with full information in writing of the property destroyed or damaged and the amount of loss or damage together with details of any other insurances on any property insured by this Policy.

2. Claims Control

a) You will immediately forward to Us upon receipt any letter, claim, writ, summons or process.
b) You will immediately notify Us of any knowledge of impending prosecution, inquest, fatal accident or ministry inquiry.
c) You shall give Us all such proofs and information with respect to the claim as We may reasonably require.
d) No admission, offer, promise, payment or indemnity shall be made or given by You or on Your behalf without Our written consent.
e) We shall be entitled to take over and conduct in Your name the defence or settlement of any claim or to prosecute in Your name at Our own expense and for Our own benefit any claim for indemnity or damages or otherwise.
f) We shall have full discretion in the conduct of any proceedings and in the settlement of any claim.
g) You agree to keep accurate books and records of all figures provided and permit Us or anyone appointed by Us to inspect Your books and records at any time insofar as they relate to this insurance.
h) If You believe that a claim is due to the act or omission of a sub-contractor, bailee or other third-party You will advise Us and ensure that no action is taken by You which might prejudice any rights We may have against them.

3. Fraud

If You or anyone acting for You or any other person covered by this Policy knowingly:

a) makes a fraudulent or exaggerated claim under Your Policy;
b) makes a false statement in support of a claim (whether or not the claim itself is genuine); or

c) submits a false or forged document in support of a claim (whether or not the claim itself is genuine),

We may:

a) refuse to pay the claim.
b) declare the Policy void, from the date of the fraudulent act. We will not refund any premium to You in respect of the unexpired period of insurance.
c) recover any sums that We have already paid under the Policy in respect of the claim.
d) by notice to You and such other person covered by this policy cancel the cover provided for such other person covered with effect from the date of the fraudulent act without any return of premium.

We may also inform the police of the circumstances.

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General Policy Definitions

Wherever the following words and phrases appear in this Policy they will always have these meanings.

Business
The Business as described in the Schedule conducted by You at or from premises in the United Kingdom, the Channel Islands or the Isle of Man

Excess
The first amount of each and every claim, as shown in the Schedule, for which You are responsible after all other terms and conditions have been applied.

Period of Insurance
The period stated in the Schedule during which We agree to provide You with cover under this Policy.

Policy
Your Policy is made up of the following:

1. the terms and conditions of this document,
2. any endorsements and certificates of insurance attached or issued by Us,
3. Your Schedule, and
4. the information and declarations provided by You in the Proposal and, if applicable, the Statement of Fact.

Proposal
The information provided by You in compliance with Your obligations under the Insurance Act 2015 whether provided by:

1. a completed proposal form, or
2. email, telephone or letter on Your behalf by the broker You have appointed as Your agent.

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Schedule
A separate sheet forming part of this Policy which among other things shows Your name, the details of Your Business, the Excesses and any endorsements that apply.

Statement of Fact
A document that We supply to Your broker which confirms the information that You have provided to Us and the assumptions We have made to provide Your quotation. If the information You have provided or any of the assumptions We have made are incorrect You must tell Us.

We/ Us/ Our
The insurer shown as “Your Insurer” in this Policy wording and as the “Insurer” in the Schedule.

You/ Your/ Insured
The person(s) or company named in the Schedule.

Section 1 – Freight Liability

Definitions applicable to all parts of this section

Whenever the following words and phrases appear in this section they will always have these meanings:

British Isles
The United Kingdom, the Channel Islands, the Isle of Man, the offshore islands and the Republic of Ireland

Container
Any demountable carrying unit, including any ISO container, tank container or flat rack and ancillary equipment whilst attached to any such unit

Conveyance
Any means of transport other than a Vehicle

Conveyance Limit
The maximum amount We will pay for all Property in or on any one Conveyance at any one time

Damage
Physical loss, destruction or damage including from Theft or misdelivery.

Eastern Europe
Albania, Bosnia Herzegovina, Bulgaria, Croatia, Cyprus, the Czech Republic, Estonia, Finland, Greece, Hungary, Kosovo, Latvia, Lithuania, Macedonia, Malta, Moldova, Poland, Romania, Serbia, Montenegro, Slovakia, Slovenia, Turkey (West of the Bosporus only).

Employee
Any:

- person under a contract of employment or apprenticeship with You
- self-employed individual providing You with labour only or
- individual hired to or borrowed by You

Event
Any one occurrence or all occurrences of a series consequent upon or attributable to one original source or cause.

Event Limit
The maximum amount We will pay for any claim or series of claims consequent upon or attributable to one original source or cause

Fire
Fire, lightning, explosion or self-ignition

Full Value Liability
Any contract for road transport (other than a contract which is subject to CMR) where You:

a) do not use contract conditions and do not wish to restrict Your liability for Damage to common law or

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b) use contract conditions but do not wish to restrict Your liability for Damage by application of their terms

Incorrectly Received Goods
Goods or merchandise (but not Containers or Trailers) in Your care, custody or control having been mistakenly identified by You or any Employee as Property

International Conventions
Any international conventions and any supplementary protocols or amendments relating to the international carriage of Property by air, sea, road or rail

Location Limit
The maximum amount We will pay if Property at any one location address sustains Damage as a result of any one Event

Own Goods
Items, equipment or merchandise belonging to You or hired, leased or loaned to You relating to Your Business as road hauliers, freight forwarders or warehouse keepers

Property
Goods or merchandise (but not Trailers or Containers) carried, handled or stored for reward by You or on Your behalf by any Subcontractor

Subcontractor
Any person (other than an Employee) or organisation to whom Property or Transportation Equipment is entrusted for reward by You or on Your behalf for the performance of a contract (either in part or whole)

Territorial Limits
The Territorial Limits shown as covered in Your Schedule

Terrorism
Any act including but not limited to the use of force or violence or the threat thereof by any person or group of persons whether acting alone or on behalf of or in connection with any other organisation or government committed for political, religious, ideological or similar purposes including the intention to influence any government or to put the public or any section of the public in fear

Theft
Theft or attempted theft

Thief Attractive Property
Bottled perfumery
Bottled and canned spirits, wines, beers and ciders.
Clothing or footwear
Articles made of or containing precious metals and/or stones
Audio or visual or audio-visual equipment and associated pre-recorded media
Computer equipment, associated software, hardware, electrical and/or electronic accessories including games consoles and satellite navigation equipment.
Non-ferrous metals in sheet, bar, tube, ingot, coil, scrap or similar form

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The definition “Thief Attractive Property” does not include property specified in Exclusion 7 of this section.

Trailer(s)
A Trailer which is properly constructed to be towed by a vehicle, which is of a size appropriate for the capacity of the vehicle and which is used for the carriage of Property. Any plant permanently attached to a Trailer shall be regarded as part of that Trailer

Transportation Equipment
Load securing and stowage equipment and any ancillary and similar equipment for which cover is provided by this section but excluding Vehicles and self-propelled equipment

Unattended
Where neither You nor any Employee are in a position to keep the Vehicle and/or Property under constant surveillance and at the same time have a reasonable prospect of preventing any unauthorised interference with the Vehicle and/or Property

Vehicle
Any motor vehicle, motor vehicle and attached Trailer or detached Trailer used to transport Property

Vehicle Limit
The maximum amount We will pay for all Property in or on any one Vehicle, Trailer or Vehicle and Trailer combination at any one time

Western Europe
Andorra, Austria, Belgium, Denmark, France, Germany, Gibraltar, Italy, Liechtenstein, Luxembourg, Monaco, the Netherlands, Norway, Portugal, San Marino, Spain, Sweden, Switzerland

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Part (A) - Road Haulage

Cover

Goods in Transit
We will indemnify You for Your liability for Damage to Property occurring during the Period of Insurance and within the Territorial Limits shown in the Schedule whilst the Property is being:

1. loaded upon, carried by or unloaded from a Vehicle for which cover is provided under this part or
2. temporarily stored in the course of transit (whether on or off a Vehicle).

Our indemnity to You will be to the extent of Your liability for any Damage:

1. under the contract conditions and International Conventions shown as insured in the Schedule;
2. at common law where the contract conditions have:
   a) been incorporated into the contract with the customer but cannot be legally enforced at law;
   b) not been incorporated into the contract with the customer provided that You can show You intended to trade under such contract conditions and took reasonable steps to notify the customer of their application and established procedures were in place for incorporating the correct contract conditions and that all Employees had been instructed in writing to follow these procedures;
3. for Full Value Liability if shown as insured in the Schedule.

Subject to the applicable limits of liability stated in the Schedule.

Driver's Personal Effects
At Your request We will indemnify the driver of any Vehicle owned or operated by You for Damage to clothing or personal effects incurred whilst the driver is engaged in Business on Your behalf during the Period of Insurance and within the Territorial Limits providing that:

1. the Event Limit applicable to this cover is £1,500.
2. We will not pay claims for mobile phones or paper money, coined cash, debit or credit cards or cheques.
3. the Excess applicable to this cover is £100.

Own Goods
Damage to Own Goods or Transportation Equipment occurring within the Territorial Limits during the Period of Insurance whilst being loaded upon, carried by or unloaded from any Vehicle owned or operated by You, provided that the Vehicle Limit applicable to this Extension is £75,000.

We will not pay claims for:

1. Damage to mobile telephones, Trailers or Containers
2. Property carried for reward
3. wear, tear and/or gradual deterioration
4. mechanical, electrical and/or electronic breakdown, failure or derangement

Driver Repatriation
Following collision, overturning or Theft of a Vehicle owned or operated by You occurring during the Period of Insurance and within the Territorial Limits (but outside the British Isles), We will indemnify

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You for the cost of repatriation of the driver or drivers to the British Isles subject to an aggregate limit of £2,000 for all claims in any one Period of Insurance.

Cabotage
Where Property is collected, carried and delivered all within the national borders of any country within the Territorial Limits specified in the Schedule (other than the British Isles), We will indemnify You for Your liability for Damage to such Property occurring during the Period of Insurance in accordance with the mandatory national laws of such country provided that:

1. liability attaches irrespective of any contract or agreement.
2. We will not pay more than £350,000 any one Event or the Vehicle Limit whichever is the lesser.

Commercial Considerations
Where You have incorporated contract conditions shown as insured in the Schedule for Road Haulage into the contract with Your customer, You are covered if for commercial reasons You wish to accept a wider liability under Part (A) provided that:

1. the sub-limits applicable to this extension are:
   a) £10,000 any one Vehicle and
   b) £10,000 in the aggregate.
2. You have not agreed, prior to the Event giving rise to the claim, to accept such wider liability.

We will not indemnify You beyond Your liability under any applicable International Convention that is shown as insured in Your Schedule.

Unforeseen Delay
We will indemnify You for all necessary costs incurred by You as a direct result of any Vehicle owned or operated by You being subject to an unforeseen delay in the ordinary course of transit during the Period of Insurance and within the Territorial Limits due to the blocking of public roads, ports or border crossings caused directly by industrial action, strikes, demonstrations, riot, avalanche, civil commotion or cancellation of ferry crossings due to adverse weather conditions

The amount payable to You will not exceed:

1. the necessary costs incurred by You, or
2. £300 per 24 hours or pro-rata thereof per Vehicle up to a maximum of 21 days whichever is the least.

We will not pay:

1. for the first 24 hours of any delay
2. more than £15,000 any one Event and £30,000 in the aggregate during any Period of Insurance

Livestock and Poultry
We will indemnify you for Your Full Value Liability for loss or death of or injury to horses, ponies, donkeys, mule, cattle, sheep, pigs, goats, deer and/or poultry occurring during road transport within the British Isles during any Period of Insurance.

We will not pay more than:

1. £5,000 any one animal
2. £25 any one bird

subject to a Vehicle Limit of £100,000 (or the limit stated on Your schedule if lower).

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Exclusion applicable to Part (A)

We will not pay claims for Property stored under a self-storage arrangement or under a contract for storage

Optional Extension

These Optional Extensions only apply if shown as insured in the Schedule

1. **Deterioration of Goods**
   Exclusion 1 of this section will not apply to Property that requires temperature or humidity controlled handling whilst being carried in a temperature or humidity controlled Vehicle or Container

2. **Trailers**
   If this Optional Extension is shown as insured in the Schedule, We will indemnify you for Damage to Trailers belonging to You or for which You are responsible occurring during the Period of Insurance and within the Territorial Limits provided that:
   a) We will not pay claims for
      i. Damage to tyres by punctures, cuts, bursts or the application of brakes
      i. wear, tear and/or gradual deterioration
      ii. mechanical, electrical and/or electronic breakdown, failure or derangement
   b) We will not pay more for any one Trailer than the amount specified in the Schedule for this extension.
   c) if at the time of any Damage
      i. the value of any one Trailer or
      ii. the total value of all Trailers
      belonging to You or for which You are responsible exceeds the respective amounts specified in the Schedule for this extension then you will be considered as being Your own insurer for the difference and shall bear a proportionate share of the claim accordingly.

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Part (B) - Warehousing

Cover

Warehoused Property
We will indemnify You for Your liability for Damage to Property occurring during the Period of Insurance whilst the Property is warehoused under a contract for storage or for storage and distribution at any location named in the Schedule, including:
1. incidental loading or unloading of any Vehicle or Conveyance
2. incidental movements within or between such locations
3. stock rotation and inventory management
4. order picking and packing, but excluding co-packing; pack or product assembly; bagging, bottling, canning, drumming or any similar activity.

Our indemnity to You will be to the extent of Your liability for any Damage:
1. under the contract conditions shown as insured in the Schedule;
2. at common law where the contract conditions have:
   a) been incorporated into the contract with the customer but cannot be legally enforced at law;
   b) not been incorporated into the contract with the customer provided that You can show You intended to trade under such contract conditions and took reasonable steps to notify the customer of their application and established procedures were in place for incorporating the correct contract conditions and that all Employees had been instructed in writing to follow these procedures.

Subject to the applicable limits of liability stated in the Schedule.

Exclusions applicable to Part (B)

We will not pay claims:

1. in respect of any Damage caused by or arising from an act of Terrorism exceeding £100,000 any one Event.

2. for Damage to Property caused by flooding unless it is stored at least 10 centimetres above floor level.

3. for Damage due to unexplained or mysterious disappearance only discovered following taking an inventory check or stocktake.

4. arising out of Theft, malicious acts or attempted malicious acts at any location owned or operated by Subcontractors unless there is evidence of forcible and violent entry to or exit from the location.

5. We will not pay claims for Property stored under a self-storage arrangement.

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Part (C) - Freight Forwarding

Cover

Freight Forwarding
We will indemnify You for Your liability for Damage to Property occurring during the Period of Insurance and within the Territorial Limits shown in the Schedule whilst the Property is being:

1. loaded upon, carried by or unloaded from a Conveyance (including incidental carriage by Vehicle) or
2, temporarily stored in the course of transit (whether on or off a Conveyance).

Our indemnity to You will be to the extent of Your liability for any Damage:

1. under the contract conditions and International Conventions shown as insured in the Schedule;
2. at common law where the contract conditions have:
   a) been incorporated into the contract with the customer but cannot be legally enforced at law;
   b) not been incorporated into the contract with the customer provided that You can show You intended to trade under such contract conditions and took reasonable steps to notify the customer of their application and established procedures were in place for incorporating the correct contract conditions and that all Employees had been instructed in writing to follow these procedures.

Subject to the applicable limits of liability stated in the Schedule.

Conditions applicable to Part (C)

1) You and Your Employees must not enter or give instructions to enter information which is known to be incorrect or likely to be incorrect on any bill of lading, housebill, waybill or similar document.

2) Any house bill of lading or house air waybill issued by You or on Your behalf must:
   a. contain BIFA on the reverse.
   b. not be signed by You or on Your behalf as “carrier”.

3) Any air waybill or house air waybill issued by You or on Your behalf must include a notice to the effect that if the carriage involves an ultimate destination or stop in a country other than the country of departure, the Warsaw Convention may be applicable and the Convention governs and in most cases limits the liability of the carriers in respect of loss of or Damage to Property.

4) You must only issue air waybills with the express agreement of the third-party air carrier and any such air waybill must:
   a. be signed by You “as agent for” such third-party air carrier, and
   b. contain the contract conditions of such third-party air carrier on the reverse.

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Part (D) - Errors and Omissions

Cover

We will indemnify You for Your liability for claims made against You during the Period of Insurance for breach of duty to Your customer due to any negligent act, negligent error or negligent omission arising from failure to comply with the customer's written instructions given to You, including faulty arrangements or clerical errors by You or Your predecessors, any Employee or Subcontractor in the course of the conduct of Your Business.

Our indemnity to You will be to the extent of Your liability for any Damage financial loss:

1. under the contract conditions and International Conventions shown as insured in the Schedule;
2. at common law where:
   a) the contract conditions have been incorporated into the contract with the customer but cannot be legally enforced at law, or
   b) the contract conditions have not been incorporated into the contract with the customer provided that You can show You intended to trade under such contract conditions and took reasonable steps to notify the customer of their application and established procedures Were in place for incorporating the correct contract conditions and that all Employees had been instructed in writing to follow these procedures, or
   c) the contract conditions do not provide for the claim made against You, or
   d) there is no contract between You and the claimant governing the transaction giving rise to the claim.

Notwithstanding Our entitlement to conduct the defence of any claim, You shall not be obliged to defend any legal proceedings under this extension unless, following legal consultation, We are advised that such proceedings can be contested with a likely prospect of success.

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Surrender of Bills of Lading

We will indemnify You for Your liability for financial loss incurred by Your customer arising from the accidental release of Property by You, any Employee, any Subcontractor or Subcontractor's employee without surrender of the original bill of lading or similar document where:

1. a claim is made against You during the Period of Insurance and
2. You have an effective system in continuous use throughout the Period of Insurance to prevent release by You or any Employee.

This cover is subject to a limit of £50,000 in the aggregate during any Period of Insurance.

Exclusions applicable to Part (D)

We will not pay claims:

1. for any liability for Damage.
2. for the breach of any obligation owed by You as employer to any Employee or former Employee.
3. for the consequence of any circumstances known to You at the inception of this part that might reasonably have been expected to result in a claim.
4. resulting from Your inability or failure to pay or collect monies.

5. for defamation, libel or slander.
6. for any liability resulting from failure to arrange (or effectively arrange) insurance of Property unless You had in place an appropriate open cover insurance policy at the time of accepting instructions to insure.
7. for any dishonest, fraudulent, criminal or malicious act by You, Your predecessors, any Employee or Subcontractor.
8. that is or would be recoverable under any other part of this section even if:
    a) You do not have the benefit of that part;
    b) Your liability exceeds the applicable limit;
    c) You are not covered by virtue of the terms applicable to that part.

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Extensions applicable to Parts (A), (B) and (C)

We will indemnify You for:

1. Incorrectly Received Goods

Your liability for Damage to Incorrectly Received Goods occurring within the Territorial Limits during the Period of Insurance.

This cover is subject to a limit of liability of £50,000 in the aggregate during the Period of Insurance

2. Third-Party Containers and Trailers

Your liability for Damage to Containers and Trailers not owned by, hired by, leased or loaned by You but for which You are responsible occurring within the Territorial Limits during the Period of Insurance.

This cover is subject to a limit of liability of £250,000 in the aggregate during the Period of Insurance.

We will not pay claims for:

1. scratching, bruising or denting
2. Damage to tyres by punctures, cuts, bursts or the application of brakes.
3. any Containers and Trailers stored at a rental unless You specifically declare the value and location of such Containers and Trailers
4. wear, tear and/or gradual deterioration
5. mechanical, electrical and/or electronic breakdown, failure or derangement

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3. Indirect Loss

Up to £300,000 any one Event or the applicable limit stated in the Schedule whichever is the least for Your liability for Your customer's financial loss by way of business interruption, increased cost of working, loss of production, loss of profits, loss of market or any other type of indirect or financial loss in respect of:

a) Damage to Property that has occurred and is deemed a payable claim under Parts (A), (B) and (C) of this section.
b) accidental delay in delivering, collecting or releasing Property (other than failure to meet a specific delivery or release date or a time agreed by You) occurring within the Territorial Limits during the Period of Insurance.

We will not pay claims under this clause:

1. where Damage or accidental delay in delivery or release of Property arises because You are exercising a lien.
2. unless You contracted with the customer in terms which exclude liability for financial loss, or which limit liability for financial loss to an amount that does not exceed four times the charges received by or due to You for the carriage, handling or warehousing of the Property which has suffered Damage.

4. Transhipment

Up to £30,000 any one Event for all necessary costs incurred for transhipment, recovery, removal and disposal of Property, Own Goods and third-party Containers and Trailers

following:

a) Damage to such Property, Own Goods and third-party Containers and Trailers or

b) an accident involving the conveying Vehicle

occurring within the Territorial Limits during the Period of Insurance, provided the claim for Damage to the Property, Own Goods and third-party Containers and Trailers is insured elsewhere under this section.

5. Lien

Up to £70,000 each Event for Damage to Property in respect of which You are properly exercising a lien provided that such Damage occurs whilst the Property is being:

a) loaded upon, carried by or unloaded from any Vehicle or Conveyance

b) held in a building for a period not exceeding 21 days

within the Territorial Limits during the Period of Insurance.

We will not pay more than:

a) the amount of the debt properly the subject of the lien or

b) the value of the Property

whichever is the least.

6. Redirection Costs

Up to £50,000 in the aggregate during the Period of Insurance for reasonable additional freight costs incurred by You in redirecting Property that has been misdirected as the result of an error committed by You, any Employee, any Subcontractor or any Subcontractor's employee during the Period of Insurance.

We will not pay claims for extra costs incurred by You for use of any expedited method of redirecting the Property unless agreed by Us beforehand.

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Conditions applicable to this section

Application of Limits
For the purposes of this section cover in respect of each person insured shall operate as if they are the only person covered by this section but in the event of a claim involving more than one person insured any limitation in respect of any amounts payable shall apply in priority to the policyholder and shall apply to the aggregate amounts paid to all persons insured.

Documents and Other Recorded Information
In respect of Damage to documents, business or personal records or similar information represented or stored upon or within paper, optical, electronic or other storage media, We will not pay more than the:

a) replacement cost of the medium upon or within which the information was represented or stored and
b) clerical or administrative cost of copying such information on to fresh stationery or other storage medium.

Driver References
You must obtain and retain at least one satisfactory reference for all Employees engaged after the inception of this section and prior to entrusting them with any Property or Transportation Equipment insured under this section. All verbal references must be recorded in writing at the time of obtaining the reference. All references must be made available to Us if We so require.

This condition does not apply to any individual supplied to You by an agency.

If You fail to make such checks We may still indemnify You if We consider that such failure was not material to the claim.

Full Value Liability
If Full Value Liability is shown as insured in the Schedule, Our liability will not exceed:

1) the limit of liability shown in the Schedule, or
2) the cost of repair or replacing the Damaged part or parts of the Property

whichever is the least.

We will not pay claims for:

a) wear, tear and/or gradual deterioration
b) mechanical, electrical and/or electronic breakdown, failure or derangement
c) loss or damage caused by or arising as a result of packing which was inadequate to withstand normal handling during transit.

The value of the Property shall be the invoice value if it has been sold or in any other circumstances its replacement cost to the Property owner at the commencement of the road transport including any duties or taxes paid or payable in respect of the Property.

Where the total value of such Property in or on any Vehicle at the time of any Damage exceeds the applicable Vehicle Limit, We will not pay more than the proportion of the claim that the Vehicle Limit bears to the total value of Property in or on the Vehicle.

Other Insurances
We will not indemnify You in respect of Damage or liability which is insured by or would but for the existence of this section be insured by any other policy except in respect of any excess beyond the

amount payable under such other policy or which would have been payable under such other policy had this insurance not been effected.

Subcontractors
You must not entrust Property or Transportation Equipment to any Subcontractor unless the Subcontractor has agreed in writing to:
1) accept at least the same levels of contractual liability that You have agreed with Your customer, and
2) fully indemnify You for all Damage to Property and Transportation Equipment in their care, custody or control.

This condition does not apply to Property or Transportation Equipment entrusted by You to any Subcontractor acting in the capacity of a shipping line, airline, port or railway operator.

The indemnity provided by this section shall not be prejudiced if You have failed to secure the written agreement of any Subcontractor to accept liability and indemnify You in accordance with this condition provided that You can prove to our satisfaction that:
1) at the time of the loss You had established procedures for doing so and
2) all Employees had been instructed in writing to follow such procedures and any failure to do so was due to an error.

Under no circumstances whatsoever shall any benefit of this section pass to any Subcontractor or the insurers of any Subcontractor

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Exclusions applicable to this section
(These exclusions are in addition to any applicable General Exclusion to the Policy)

We will not pay claims:

1) for Damage to Property caused by or arising from any change in temperature or humidity unless resulting from Fire, Theft or as a direct result of the collision or overturning of the conveyance.

2) for hardening of tarmac, concrete or similar Property unless resulting from Fire, Theft, or as a direct result of the breakdown, collision or overturning of the conveyance.

3) for inherent vice.

4) for Damage to Trailers other than whilst being carried on a Vehicle for reward except as provided for in Extension 2 of Parts (A), (B) and (C) and as may be provided for in Optional Extension 2 of Part (A).

5) for Property in the course of a household, office, factory or similar removal including whilst temporarily stored in the course of the removal.

6) for Theft of Thief Attractive Property knowingly carried by You whilst:

   a) entrusted to any agency driver or Subcontractor or
   b) Unattended unless at the time of the Theft the Property was either:
      i. contained in a building (whether or not loaded in or on a Vehicle) which was securely closed and locked or
      ii. loaded in or on a Vehicle:
         1) to which all doors, windows and other openings were closed and securely locked, any security devices or systems were set in operation and from which all keys had been removed and
         2) which was parked within a walled or fenced compound to which entry and exit was controlled by either locked gates or professional on-site security guards.

   The Property will not be regarded as Unattended whilst the Vehicle on which it is loaded is parked in a purpose-designed vehicle park and the driver is asleep in the cab.

7) for bullion, bank notes, coins, cheques, credit or debit cards, bonds, negotiable financial documents, securities and other financial instruments, persons or live creatures (except as provided for in the "Livestock and Poultry" cover of Part (A)), antiques, works of art, precious metals, precious stones, smartphones, computer chips, cigarettes and processed tobacco, jewellery and watches.

8) for Property being towed other than whilst on a Trailer.

9) for Property or Own Goods whilst being driven under its own motive power except whilst being loaded onto or off-loaded from any Vehicle or Conveyance. For the purposes of this exclusion loading commences when the wheels or tracks of the Property or Own Goods touch the ramp of the Vehicle or Conveyance and unloading ceases when the wheels or tracks leave the ramp of the Vehicle or Conveyance.

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10) caused by or arising from any reckless or wilful misconduct by You or any of Your directors or partners.

11) for Your liability to any government, government agency or local authority for fines, duties, taxes, levies, expenses incidental to demand, or any other penalty whatsoever, incurred as a result of any infringement in codes of practice, legislation, by-laws or regulations.

12) in respect of failure to meet a specific delivery, collection or release date or time or any services standard or performance guarantee or penalty clause.

13) for any liability as a result of Your insolvency.

14) for liability caused by or arising from the exercise by You of a lien.

15) in respect of additional liability arising from any increase or amendment of the standard financial limits of liability contained in contract conditions or International Conventions (even though the contract or convention permits agreement of such increases or amendments) or other variation or amendment to the such contract conditions or International Convention unless shown in the Schedule.

16) if You release or give instructions to release customers' Property except against the surrender of the original bill of lading or similar document (except as provided for in the "Surrender of Bills of Lading" cover in Part (D)).

17) liability or costs arising from the release or escape of any pollutant into or upon land, sea, the atmosphere, any watercourse or body of water.

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General Exclusions to the Policy

Unless otherwise stated, the following exclusions apply to this entire Policy.

1. WAR AND CIVIL WAR EXCLUSION

This Policy does not cover loss or damage directly or indirectly occasioned by, happening through or in consequence of war, invasion, acts of foreign enemies, hostiles (whether war be declared or not), civil war, rebellion, revolution, insurrection, military or usurped power or confiscation or nationalisation or requisition or destruction of or damage to property by or under the order of any government or public or local authority.

2. TERRORISM EXCLUSION
(except Part (B) of the Freight Liability section)

This Policy excludes loss, damage, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any act of terrorism regardless of any other cause or event contributing concurrently or in any other sequence to the loss.

For the purpose of this exclusion an act of terrorism means an act, including but not limited to the use of force or violence and/or the threat thereof, of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organization(s) or government(s), committed for political, religious, ideological or similar purposes including the intention to influence any government and/or to put the public, or any section of the public, in fear.

This exclusion also excludes loss, damage, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any action taken in controlling, preventing, suppressing or in any way relating to any act of terrorism.

If We allege that by reason of this exclusion, any loss, damage, cost or expense is not covered by this Policy the burden of proving the contrary shall be upon You.

In the event any portion of this exclusion is found to be invalid or unenforceable, the remainder shall remain in full force and effect.

3. CYBER EXCLUSION

This Policy does not insure loss, damage, destruction, distortion, erasure, corruption or alteration of ELECTRONIC DATA from any cause whatsoever (including but not limited to COMPUTER VIRUS) or loss of use, reduction in functionality, availability or failure in the security of a computer system, hardware, program, software, data, information repository, microchip, integrated circuit or similar device in computer equipment or non-computer equipment, or cost, expense of whatsoever nature resulting therefrom, regardless of any other cause or event contributing concurrently or in any other sequence to the loss.

ELECTRONIC DATA means facts, concepts and information converted to a form useable for communications, interpretation or processing by electronic and electromechanical data processing or electronically controlled equipment and includes programmes, software, and other coded instructions for the processing and manipulation of data or the direction and manipulation of such equipment.

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COMPUTER VIRUS means a set of corrupting, harmful or otherwise unauthorised instructions or code including a set of maliciously introduced unauthorised instructions or code, programmatic or otherwise, that propagate themselves through a computer system or network of whatsoever nature. COMPUTER VIRUS includes but is not limited to 'Trojan Horses', 'worms' and 'time or logic bombs'.

4. RADIOACTIVE CONTAMINATION, CHEMICAL, BIOLOGICAL, BIOCHEMICAL AND ELECTROMAGNETIC WEAPONS EXCLUSION

In no case shall this Policy cover loss, damage, liability or expense directly or indirectly caused by or contributed to by or arising from-

i. ionizing radiations from or contamination by radioactivity from any nuclear fuel or from any nuclear waste or from the combustion of nuclear fuel.
ii. the radioactive, toxic, explosive or other hazardous or contamination properties of any nuclear installation, reactor or other nuclear assembly or nuclear component thereof.
iii. any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter.
iv. the radioactive, toxic, explosive or other hazardous or contaminating properties of any radioactive matter. The exclusion in this sub-clause does not extend to radioactive isotopes, other than nuclear fuel, when such isotopes are being prepared, carried, stored, or used for commercial, agricultural, medical, scientific or other similar peaceful purposes.
v. any chemical, biological, bio-chemical, or electromagnetic weapon.

5. ASBESTOS EXCLUSION

It is hereby understood and agreed that this Policy shall not apply to, and does not cover, any actual or alleged liability whatsoever for any claim or claims in respect of loss or losses directly or indirectly caused by, arising out of, resulting from, in consequence of, in any way involving, or to the extent contributed to by, the hazardous nature of asbestos or any materials containing asbestos in whatever from or quantity.

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6. COMMUNICABLE DISEASE EXCLUSION

This Policy excludes any loss, damage, liability, claim, cost or expense (whether such loss, damage, liability, claim, cost or expense has been suffered by an insured or a third party) of whatsoever nature, directly or indirectly caused by, contributed to by, resulting from, arising out of, in connection with, or otherwise in any way directly or indirectly attributable to:

a) Coronaviruses; and
b) Coronavirus disease (COVID-19); and
c) Severe acute respiratory syndrome coronavirus 2 (SARS- CoV-2); and
d) any mutation of or variation of a), b) or c) above; and
e) any infectious disease that is designated or treated as a pandemic by the World Health Organisation; and
f) any fear or anticipation of a), b), c), d) or e) above, regardless of any other cause or event contributing concurrently or in any other sequence thereto.

General Policy Conditions

1. Alteration

You shall give immediate notice to Us if:

a) You:
   i. agree a composition or arrangement with Your creditors
   ii. agree a proposal for a voluntary arrangement for a composition of debts or scheme of arrangement approved in accordance with the Insolvency Act 1986 (or any successor Act)
   iii. have an application made under the Insolvency Act 1986 (or any successor act) to the court for the appointment of an administrator
   iv. have a winding-up order made or a resolution for voluntary winding up passed (except for the purposes of amalgamation or reconstruction), or have a provisional liquidator, receiver or receiver and manager of the Business duly appointed
   v. have an administrative receiver, as defined in the Insolvency Act 1986 (or any successor Act), appointed or You have possession taken by, or on behalf of, the holders of any debentures secured by floating charge of any property comprised in or subject to the floating charge
b) any alteration in risk materially increases the probability of injury, loss, destruction, damage, theft or attempted theft
c) Your interest in the subject of this insurance ceases except by will or operation of law.

We will advise You in writing whether We accept such alteration and, if so, the terms to be applied. If You fail to provide such notice then We may, at Our absolute discretion, choose to avoid any or all sections of this Policy.

2. Arbitration

If any difference shall arise as to the amounts to be paid under this Policy (liability being otherwise admitted) such difference shall be referred to an arbitrator to be appointed by the parties in accordance with statutory provisions. Where any difference is by this condition to be referred to arbitration the making of an award shall be a condition precedent to any right of action against Us.

3. Insurance Act 2015

In respect of:
a) any duty of disclosure
b) the effect of warranties
c) the effect of acts of fraud

the rights and obligations applying to You and Us shall be interpreted in accordance with the provisions of the Insurance Act 2015.

4. Instalment Premiums

a) Where reference is made in this policy to the payment of premium this includes any agreement by You to pay by instalments.

b) If Your broker has agreed to accept payment of the first premium or any subsequent premium by instalments this Policy remains a contract for the Period of Insurance shown in

the Schedule.

c) If any instalment of premium is not received by Your broker on or before its due date all unpaid instalments of premium and any Policy Administration Fees shall immediately become payable.

Should the full premium and Policy Administration Fee not be paid within 7 days of Your broker giving written notice of non-payment of an instalment, this Policy shall be cancelled immediately on expiry of such notice.

Following such cancellation Your broker shall return to You the balance of any instalments already paid after deduction of an appropriate charge for the insurance cover to the date of cancellation except that if:

i. a claim has been made under the Policy for which We have made a payment, or which is still under consideration
ii. an incident has occurred which is likely to give rise to a claim but is yet to be reported to Us

no refund of premiums shall be made and the annual premium remains due in full. In this case monthly collection must continue or a one-off payment be agreed to settle the outstanding amount. Alternatively, We may deduct any outstanding instalments from any claim payment that may be due to You or payable on Your behalf.

5. Observance of Terms

Our liability is conditional upon the observance of the terms of this Policy relating to anything to be done or complied with by You or any other person insured. This shall include any requirements described in any endorsements attached to and forming part of this Policy.

6. Policy Administration Fees

We or Your broker may charge You an administration fee if We or Your broker:

a) make any changes to the Policy on Your behalf;
b) agree to cancel the Policy during the Period of Insurance;
c) are requested to print and re-send the Policy documents to You.

Neither We, nor Your broker, will make a charge without informing You.

7. Premium Adjustment

If any part of the premium is based upon estimates provided by You then the premium payable by You is a minimum and deposit premium. You will keep an accurate record containing all such particulars and shall allow Us to inspect such record.

Within one month of the expiry of each Period of Insurance You shall provide Us with such information as We may at our discretion require.

The premium shall then be adjusted by Us and the difference paid by You.

If you fail to provide the information We have requested then We may, at our discretion, charge You an additional premium that We believe reflects any additional cover We have provided over the

preceding period of insurance based upon the information We already have in our possession.

8. Reasonable Precautions

You shall take:

a) all reasonable precautions to prevent occurrences which may give rise to liability under this Policy;
b) all reasonable steps to comply with statutory requirements, obligations and regulations imposed by any authority;
c) immediate steps to make good or remedy any defects or dangers which become apparent and take such additional precautions as the circumstances may require;
d) reasonable care in the selection, training and supervision of employees.

9. Right of Entry and Salvage

a) We may enter any premises where loss, destruction or damage to the property insured has occurred and take possession of or require to be delivered to Us any property in any reasonable manner.
b) No property may be abandoned to Us.

10. Economic, Financial or Trade Sanctions

We shall not provide coverage or be liable to provide any indemnity or payment or other benefit under this policy if and to the extent that doing so would breach any Prohibition.

If any such Prohibition takes effect during the Period of Insurance We or You may cancel that part of this policy which is prohibited or restricted with immediate effect by giving written notice to the other at their last known address.

If the whole or any part of this policy is cancelled We shall, if and to the extent that it does not breach any Prohibition, return a proportionate amount of the premium for the unexpired period subject to minimum premium requirements and provided no claims have been paid or are outstanding.

For the purposes of this clause Prohibition shall mean any any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulation of the European Union, United Kingdom or United States of America.

11. Contracts (Rights of Third Parties) Act

A person or company who is not a party to this policy has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this policy but this does not affect any right or remedy of any third party which exists or is available apart from that Act.

12. Subrogation

You or any insured person must allow Us to take in Your name or the name of any insured person and take all the steps necessary to enforce Your rights or those of the insured person against any other party, including the defence or settlement of any claim or the pursuit of a claim in the name of You or any other insured person, and We will pay the reasonable costs and expenses involved

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Fair Processing

Provego Ltd, Accelerant Insurance Europe SA/NV UK Branch and Sedgwick International UK are the joint data controllers of any personal information you provide to us or personal information that has been provided to us by a third party. We collect and process information about you in order to arrange insurance policies and to process claims. Your information is also used for business purposes such as fraud prevention and detection and financial management. This may involve sharing your information with third parties such as insurers, brokers, reinsurers, claims handlers, loss adjusters, credit reference agencies, service providers, professional advisors, our regulators, police and government agencies or fraud prevention agencies.

We may record telephone calls to help us monitor and improve the service we provide.

For further information on how your information is used by Provego and your rights in relation to your information, please see our privacy policy on https://bspokegroup.co.uk/brands/provego-underwriting/.

For further information on how your information is used by Accelerant and your rights in relation to your information, please see Accelerant's privacy policy – https://accelerant.ai/privacy-policy/.

For further information on how your information is used by Sedgwick and your rights in relation to your information please see Sedgwick's privacy policy, which is available upon request by calling 0345 604 9826 or emailing helpline@uk.sedgwick.com

If you are providing personal data of another individual to us, you must tell them you are providing their information to us and show them a copy of this notice.

We may process your information for a number of different purposes. For each purpose we must have a legal ground for such processing. When the information that we process is classed as "special categories of personal data", we must have a specific additional legal ground for such processing.

Generally, we will rely on the following legal grounds:

- It is necessary for us to process your personal information to provide your insurance policy and services. We will rely on this for activities such as assessing your application, managing your insurance policy, handling claims and providing other services to you.
- We have an appropriate business need to process your personal information and such business need does not cause harm to you. We will rely on this for activities such as maintaining our business records and developing, improving our products and services.
- We have a legal or regulatory obligation to use such personal information.
- We need to use such personal information to establish, exercise or defend our legal rights.
- You have provided your consent to our use of your personal information, including special categories of personal data.

How we share your information

In order to sell, manage and provide our products and services, prevent fraud and comply with legal and regulatory requirements, we may need to share your information with the following third parties:

- Reinsurers, regulators and authorised/statutory bodies
- Credit reference agencies
- Fraud prevention agencies

- Crime prevention agencies, including the police
- Suppliers carrying out a service on our, or your, behalf
- Product providers where you've opted to buy additional cover
- Other insurers, business partners and agents
- Other companies within the Bspoke Group family

Marketing

We will not use your information or pass it on to any other person for the purposes of marketing further products or services to you unless you have consented to this.

Fraud Prevention and Detection

In order to prevent or detect fraud and money laundering we will check your details with various fraud prevention agencies, who may record a search. Searches may also be made against other insurers' databases. If fraud is suspected, information will be shared with those insurers. Other users of the fraud prevention agencies may use this information in their own decision-making processes.

We may also conduct credit reference checks in certain circumstances. You can find further details in our full privacy policies explaining how the information held by fraud prevention agencies may be used or in which circumstances we conduct credit reference checks and how these checks might affect your credit rating.

Automated Decisions

We may use automated tools with decision making to assess your application for insurance and for claims handling processes, such as price rating tools, flood, theft and subsidence area checks and credit checks.

These automated decisions will produce a result on whether we are able to offer insurance, the appropriate price for your policy or whether we can accept your claim. If you wish to contest an automated decision, you can contact us using the details provided at the end of this page.

International Transfers

Under data protection law, when personal information is being transferred outside the European Economic Area (EEA), we as data controller, are under an obligation to ensure that such transfers are performed in a manner that ensures that your personal information is adequately protected.

How to Contact Us

Please contact us if you have any questions about our privacy policies or the information we hold about you. You can do this by writing to us at Lasyard House, Underhill Street, Bridgnorth, Shropshire WV16 4BB or emailing info@provego.co.uk.

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